IN THE DISTRICT COURT AT LA HELD ON THURSDAY THE 7TH DAY OF AUGUST, 2025. BEFORE HER WORSHIP ADWOA BENASO ASUMADU-SAKYI, SITTING AS MAGISTRATE

SUIT NO: A2/07/23

WO1 SAMUEL KOJO ANTWI
BURMA CAMP
ACCRA >>> PLAINTIFF

VRS.

JAMES TAWIAH NKRUMAH
COMMUNITY 3
TEMA >>> DEFENDANT

PARTIES:

Plaintiff present

Defendant present

LEGAL REPRESENTATION:

Benedicta Biama Effum holding brief for Daniel Mensah Gorman for the Defendant

Gad Motey for the Defendant

JUDGMENT

INTRODUCTION

The Plaintiff through his lawyer commenced the instant suit on the 10th of October, 2022 against the Defendant and prayed for the following reliefs;

a. The sum of Thirty Five Thousand One Hundred and Thirty Four Ghana Cedis (GH¢ 35,134.00) being cost of repair of the damage to Plaintiff's vehicle caused by Defendant.

b. Loss of use of vehicle by plaintiff at a daily rate of Five Hundred Ghana Cedis (GH¢ 500.00) from 12th September, 2018 till date of final payment.

c. Interest on the total amount at the prevailing commercial lending rate from 12th September, 2018 till date of final payment.

d. Cost

The Defendant filed a conditional appearance on the 5th of December, 2022 but it was struck out by the court differently constituted on the 12th of December, 2022. The Court granted the Defendant leave to file his statement of defence and counterclaim and same was filed on the 22nd of December, 2022 and prayed for the following reliefs;

i. Refund of the sum of GH¢ 6,700 spent on fixing the Plaintiff's vehicle.

ii. Interest on the amount of GH¢ 6,700 from the day the car was given to Defendant till date of final payment.

iii. Return of the GH¢ 10,000.00 which Plaintiff toTYok from Defendant's Elantra car.

iv. Interest on the amount of GH¢10,000.00 from March 2020 till final payment.

v. Compensation for unlawful arrest torture and detention.

vi. Compensation the emotional assault and battery.

vii. Compensation for the psychological torture suffered by the Defendant's family.

viii. Cost.

The Plaintiff then filed a Reply to the Statement of defence and Counterclaim on the 16th of January, 2023. The Defendant filed an application to join the chief of defence staff as the 2nd Defendant in the 17th of February, 2o23 but same was dismissed as unmeritorious on the 21st of March, 2023. Parties were ordered to file their witness statements on the 23rd of June, 2023 and the Plaintiff complied with the court's order and filed his witness statement on the 20th of June, 2023. The Defendant filed his pre-trial check list, witness statement and that of his witnesses on the 6th of July, 2023. Case management conference was conducted on the 25th of July, 2023 and hearing commenced on the 25th of October, 2023 and was completed on the 27th of March, 2025.

PLAINTIFF'S CASE

The Plaintiff's case as contained in his statement of claim and incorporated in his witness statement as his evidence in chief states that sometime in 2017; the Defendant contacted him that he needed his 4x4 vehicle to use with an expatriate business partner by name William Smith for philanthropic work in the Volta Region. He states that when the Defendant proposed to purchase his 2008 model of BMW X6 vehicle and agreed to a purchase price of One Hundred and Seventy Thousand

Ghana Cedis (GH¢ 170,000.00). He also states that an agreement dated the 12th of September, 2018 was signed to the effect that the purchase price would be paid in a month's time.

He further states that Defendant failed to adhere to the terms of the agreement and bolted with the vehicle and all efforts to locate him proved futile. He further states that he reported the Defendant to the police and other security agencies in the country.

That the Defendant was arrested by National Security Operatives on the 17th of March, 2020 and he was then handed over to the police CID together with the vehicle. An examination was conducted on the vehicle and it came to light the fender lights were removed, the battery destroyed, the interior of the vehicle were damaged, tyres were worn out and the engine completely damaged. The Defendant after his arrest signed another undertaking which was witnessed by his sister where he committed to pay for the vehicle and all incidental expenses before the end of April, 2020 but defaulted on it. All attempts to get the Defendant to fix the vehicle and pay for its use have proved futile.

DEFENDANT'S CASE

The Defendant however tells a different story and he states that it was rather the Plaintiff who sought his assistance in selling his second hand BMW 4x4 vehicle as he had helped him to sell another car previously. He states that before the Plaintiff handed him his vehicle he had driven same for a while and as a result it had deteriorated before he asked him to assist him in disposing same off.

He states that even though he got a buyer to purchase the Plaintiff's vehicle he detected the car was defective when he drove it and he informed the Plaintiff. The Plaintiff then asked him to try and raise some money to fix it and that he would reimburse him from the sale of the vehicle. The Defendant states that he spent an amount of Six Thousand Seven Hundred Ghana Cedis (GH¢ 6,700) to repair the vehicle. The Defendant further states that the parties also agreed that if the sale could not go through within three months, the Plaintiff would take his car back.

Despite this agreement, when he failed to dispose of the vehicle after the agreed three months the Plaintiff however refused to take back his vehicle and rather insisted the Defendant keep the vehicle and try to sell it as he was more likely to find a buyer than he could.

He also states that the Plaintiff prepared a written agreement but upon reading same he drew the Plaintiff's attention to the clause which reduced the agreed period of the sale of the vehicle from three months to one month. That the Plaintiff however assured him that the period didn't matter since they were friends and that since the vehicle had to be fixed before selling same it would take more time to sell same than the agreed period. He goes on to state that after a while he called the Plaintiff and informed him that he was returning the vehicle as he was finding difficult to get a buyer but the Plaintiff insisted he must try his possible best to get a buyer and also threatened him that if he should return the vehicle he would lock him up in the guardroom for failing to sell same.

The Defendant states that in the early hours of 13th of March, 2020, the Plaintiff stormed his house with some people led by DSP Azugu who he introduced as National Security operatives. He also states that the Plaintiff and the said National security operatives entered his bedroom and pulled him out with DSP Azugu pointing a gun at him and also threatened to shoot him in the presence of his wife and children.

The Defendant states that he was then taken to the National Security Secretariat by the Plaintiff and the National security operatives which is also known as blue gate

where he was mishandled and later sent to the police station at ministries and left him there. The crime officer of the ministries police station noticed that the Defendant had been beaten tried to find the officers who brought him to the police station but his efforts was unsuccessful.

That the Plaintiff in the company of DSP Azugu and the National Security operatives went to the Defendant's house and took the keys of his Hyundai Elantra vehicle and drove it to the National Security secretariat and the Plaintiff took an amount of Ten Thousand (GH¢ 10,000.00) from his Hyundai vehicle and said he handed same to DSP Azugu. He also states that after he was tortured by the operative at the national security secretariat DSP Azugu pulled out a drafted agreement dated on the 17th of March, 2020 and that he was made to sign same and his wife was made to sign same as a witness under the threat of being wasted if he refuses to sign same.

Defendant was once again arrested by the Plaintiff and a team of security operatives in October, 2020 within a short period of calling him when he was on the N1 highway and his wife and children were pulled out of the car and he was driven to the National Security secretariat and his wife and children were left stranded on the road.

Defendant was then sent to the Osu police station and kept in the police cells until the following day. That his wife went to the Police Intelligence and Professional Standards Unit (PIPS) of the Ghana Police services which led to a call being placed to the Osu police station and this made DSP Azugu and his men rush to the Osu police station to take the Defendant back to the National security secretariat.

He was then sent CID headquarters and put before the Special Investigation Unit (SIU) where he was later granted bail and after a period of investigations he was told a criminal charge could not be maintained against him and so he was discharged.

Defendant states that PIPS conducted investigations into the conduct of DSP Azugu and the other security operatives.

He states that the conduct of the Plaintiff has caused him anxiety, trauma and fear in the Defendant and his family. He also states that the vehicle was in good condition when it was taken from his custody to the National Security secretariat and the car has been in the custody of the Plaintiff and that he has been driving same to and from the police headquarters anytime the parties were invited during the investigation. He states that the Plaintiff is not entitled to his claim and prayed the court to grant the reliefs in his counterclaim.

DISCUSSION OF THE LAW

It is a time honoured principle of the Law of Evidence, that a Plaintiff in a civil suit must, in line with the provisions of **Sections 10 and 11 of the Evidence Act, 1975 (NRCD 323)** produce in Court, the requisite evidence on a balance of probabilities, to avoid a ruling being made against him. This legal principle has been emphasised in a series of cases notable the case of **Ackah v. Pergah Transport [2010] SCGLR 728** where Adinyirah JSC stated the position as follows:

> "It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is carried and it includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence), without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing evidence so that on all the

> evidence a reasonable mind could conclude that the existence of the fact is more probable than its non-existence. This is a requirement of the law on evidence under sections 10(1) and (2) and 11(1) and (4) of the Evidence Act, 1975 (NRCD 323),"

See the cases of Ababio v. Akwasi IV [1994-1995] GBR 774, Zambrama v. Sebgedzi [1992] 2 GLR 221 CA, In Re Ashalley Botwe Lands; Adjetey Agbosu and Others v. Kotey and Others [2003-2004] SCGLR 420.

It follows therefore that this being a civil claim; the Plaintiff shoulders the burden to prove his claim on a balance of probabilities. By Section 14 of NRCD 323 this burden will not shift unless he first succeeded this burden in the light of the evidence led.

The Defendant counter claimed and this claim which a claim by the Defendant who is technically the Plaintiff as a counterclaim is a separate and independent action and thus he bear the burden of proof regarding every allegation of fact traversed. See the case of Jass Company Limited v. Appau [2009] SCGLR 269 at 271.

EVALUATION OF THE EVIDENCE

The duty of this Court therefore is to determine whether or not the Plaintiff has succeeded this burden in the light of the evidence led.

It is settled law that he who alleges must prove his case on the strength of his own case. This principle was enunciated in the case of **Owusu v. Tabiri and Another [1987-88] 1 GLRR** as follows:

> "It was a trite principle of law that who asserted must prove and win his case on the strength of his own case and not the weakness of the defence".

Although there were no issues for trial, in order to make a determination I have set down the following as issues for trial;

i. Whether or not the parties entered into an agreement for the sale of the Plaintiff's BMW X6 2008 model.
ii. Whether or not the parties entered into an agreement for the sale of the Plaintiff's 2008 model of BMW X6 vehicle.
iii. Whether or not the Plaintiff's vehicle had deteriorated when he retrieved same.
iv. Whether or not the Defendant must be ordered to pay an amount of Thirty Five Thousand One Hundred and Thirty Four Ghana Cedis (GH¢ 35,134.00) which is the cost of repair of the Plaintiff's vehicle
v. Whether or not the Defendant should be ordered to pay for the loss of use of his vehicle at a daily rate of Five Hundred Ghana Cedis (GH¢500.00) from 12 September, 2018 till date of final payment.
vi. Whether or not the Plaintiff should be ordered to pay an amount of Six Thousand Seven hundred Ghana Cedis (GH¢ 6,700.00) which the Defendant spent on fixing the Plaintiff's vehicle.
vii. Whether or not the Plaintiff took an amount of Ten Thousand Ghana Cedis (GH¢10,000.00) from the Defendant's Elantra car.
viii. Whether or not the Defendant's arrest, torture and detention were unlawful.
ix. Whether the Defendant was tortured, went through emotional assault and battery, when he was detained.
x. Whether the Defendant's family went through psychological torture when they witnessed the Defendant's arrest.

ISSUE ONE

The first issue to be determined is whether or not the parties entered into an agreement for the sale of the Plaintiff's BMW X6 2008 model.

The Plaintiff mounted the witness box on the 25th of October, 2023 and relied on his witness statement as his evidence in chief where he repeated his assertions against the Defendant. He tendered into evidence a copy of the agreement the parties entered into and same was marked as Exhibit A which he is calling the court to enforce. He also tendered into evidence screenshots of phone conversations between the parties and same was marked as Exhibit B series, a copy of the invoices for parts required to fix the vehicle marked as Exhibit D series, copy of the police report marked as Exhibit E, pictures of the condition of the vehicle and after the Defendant took charge of it marked as Exhibit F series, copies of pro forma invoice of the cost of hiring a similar vehicle of the plaintiff from companies marked as Exhibit H, a copy of an undertaking the Defendant committed to paying for the vehicle and all incidental expenses marked as Exhibit G.

I have taken the trouble to analyse the terms of the agreement as it is trite learning that when a court is called upon to enforce a contract, it is required to enforce what the parties have agreed to. I will reproduce the relevant portions of Exhibit A as follows;

STAFF-IN-CONFIDENCE

AGREEMENT BETWEEN WOII ANTWI SAMUEL KOJO AND JAMES TAWIAH NKRUMAH

1. I, WOII ANTWI SAMUEL KOJO ON 12 SEPTEMBER 2018 HANDED OVER MY BMW X6 2008 MODEL UNREGISTERED CAR TO MR JAMES TAWIAH NKRUMAH ON THE BASIS OF PAYING AN AMOUNT OF ONE

HUNDRED AND SEVENTY THOUSAND GHANA CEDIS (GH¢ 170,000.00) IN A MONTH'S TIME.

2. MR JAMES TAWIAH NKRUMAH IS TO HANDLE THE CAR WITH CARE. WITHIN THE ONE MONTH PERIOD HE IS EXPECTED TO PAY ALL OUTSTANDING AMOUNT. HOWEVER, HE MUST SERVICE THE CAR PERIODICALLY BECAUSE THE CAR IS BEING HANDED TO HIM WITHOUT ANY SERVICE LIGHT ON THE DASH BOARD CLUSTER.

3. REFUSAL TO ADHERE OR COMPLY WITH THE ABOVE AGREEMENT IS A SERIOUS BREACH OF CONTRACT AND IT WILL ATTRACT LEGAL CONSEQUENES AND SET FINE OF AN AMOUNT OF TEN THOUSAND GHANA CEDIS (GH¢ 10,000.00).

4. WE THE UNDERSIGNED HAVE READ CAREFULLY AND UNDERSTAND THE ABOVE STATEMENT AND WE CONCUR.

It is settled law that when parties enter into a contract the terms are binding and those terms must be enforced against them. The only requirement for parties to avoid complying with the terms of the contract is that there is an unlawful reason to do so. This principle was laid down in the case of L'estrange v. F. Graucob Limited [1934] 2 K.B 394.

I have perused the record and there is no evidence that is any unlawful reason for any of the parties to avoid complying with the terms of Exhibit A and therefore the terms of Exhibit A are binding on both parties.

The court have also held that when men who are of full age and understanding have the utmost liberty of entering into contracts and that when these contracts are

entered into freely and voluntarily, the contract shall be held sacred and enforced by the courts. See the case of Printing and Numerical Registering Co. v. Sampson (1975) LR 19 EQ 462 at 507, Oppong v. Anarfi (2011) SCGLR 556.

There is no evidence on record that the parties were induced to sign Exhibit A and as a result this court has to enforce the terms of Exhibit A.

Having come to this conclusion this court will be guided by the words of Exhibit A to determine the intention of the parties when they were signing same. It is also trite learning that the courts must be guided by the words of this agreement, as these words effectuate the intentions of the parties. In **Chatley v. Brazilian Submarine Telegraph Company [1981] 1 QB 71**, Lindley L.J. stated that:

> "…the expression, construction as applied to a document and all events as used by English Lawyers includes two things: first the meaning of the words and secondly their legal effect or the effect which is to be given to them. The meaning of the words I take to be a question of fact in all cases, whether we are dealing with a poem or a legal document. The effect of the words is a question of law"

With these principles in mind it is clear that arties to a contract would not be permitted to avoid a contract unless there were valid or lawful reasons to do so. It is not the duty of the courts to make contracts for the parties and where the terms of the contract have been reduced into writing, the court would interpret them to give effect to the intentions of the parties. See Poku v. Ghana Commercial Bank [1989-90] 2 GLR 37.

It is also trite that whenever there is a written agreement between parties, as is in the instant case, the duties and responsibilities of each party are to be sought for within

that agreement. See the case of West Crown Investment Company Limited v. Edmond Adom Malm and Stephen Yeboah (2015) JELR 64024 (CA).

I will now discuss the arguments put forth by Counsel for Defendant in his written address in respect of Exhibit A which he claims invalidates Exhibit A. Counsel for the Defendant in his written address argued that Exhibit A is not dated and that no date is written against the signature of the Defendant and that of his witness which goes to the validity of this agreement.

He also states that a date is written against the signatures of the Plaintiff and his witnesses. I have carefully perused Exhibit A and the 12th of September, 2018 is clearly stated. I will reproduce the relevant portion of Exhibit A as follows:

> **'I, WOII ANTWI SAMUEL KOJO ON 12 SEPTEMBER 2018 HANDED OVER…"**

It is also important to note that when the Defendant was confronted with this he answered that there was a date on Exhibit A. This is what happened during cross examination by Counsel for the Plaintiff on the 27th of May, 2024;

> Q. Take a look at Exhibit A, can you tell the court the date stated on that agreement?
> A. 12th September, 2018

Admission is defined by the 7th edition of the Black's Law Dictionary as a voluntary acknowledgement of the existence of facts relevant to an adversary's case. Justice Brobbey in his book, Essentials of Ghana Law of Evidence at page 112 explained admissions to mean the fact or issue which has been conceded and is no longer in contention. It was held in the case of **Samuel Okudzeto Ablakwa and Another v.**

Jake Obetsebi Lamptey and Another [2013-2014] 1 SCGLR 16 that where a matter is admitted proof is dispensed with.

Also in the case of **In re Asere Stool; Nikoi Olai Amontai IV (Substituted by) Tafo Amon II v. Akotia Owirsika III (Substituted by) Laryea Ayiku III [2005-2006] SCGLR 637 at 656,** which was quoted with approval in Fynn v. Fynn [2013-2014] SCGLR at 727 at 738, it was held that there cannot be any better proof than an adversary admitting a fact in contention.

Therefore, with this admission there is no need to prove that Exhibit A was dated the 12th of September, 2018 and I hereby conclude that Exhibit A was duly dated.

Also although the Defendant denied ever signing Exhibit A when he was pressed further he confirmed his name and telephone number in the agreement. This is what he had to say on the 27th of May, 2024:

> Q. Take a look at Exhibit A. Can you identify your name on the document?
> A. Yes
> Q. And the signature there is your signature there is your
> signature as well
> A. It can be my signature
> Q. Can you confirm that this telephone numbers on Exhibit A are yours
> A. The 0244581690 is my number

The above answer by Defendant on the question of whether the signature in Exhibit A is his was clearly evasive even though the said signature was clearly his and it must also be noted he never emphatically denied that this signature was his.

Also although there is no date against the Defendant's signature, it is important to note that the Defendant signed this document and he did not deny that he did

indeed sign same. Even without a date against his signature and the fact that no one was there to witness it does not invalidate it unless he proves that he signed the document under duress and a careful perusal of the record clearly shows that there is no such evidence on record.

Counsel for Defendant also argued that there since the words "STAFF IN CONFIDENCE" is found in Exhibit A it meant this document was a confidential document and that this also invalidates the agreement. The Plaintiff denied this assertion during cross examination by Counsel for Defendant on the 14th of February, 2024. This is what transpired:

> Q. Take a look at Exhibit F series attached to your witness statement and confirm if they are the same. Your exhibit G which you claim to be an agreement between you and the Defendant labelled Staff-In-Confidence what does that word mean?
>
> A. It means a document between me and the Defendant. It has nothing to do with the military.
>
> Q. I put it to you that it means that this document is only a confidential document and cannot be used anywhere
>
> A. I do not agree

With this denial the burden therefore was on the Defendant to adduce evidence in support of his assertion but unfortunately there is no evidence on record to support this assertion and there is no evidence that the parties intended Exhibit A to be a confidential agreement. This Court cannot therefore accept this assertion by the Defendant.

Although the Plaintiff's claim is that he handed the vehicle to the Defendant for sale a careful read of Exhibit A is however silent on whether the vehicle was being bought by the Defendant or that he was to assist the Defendant to sell same. This is what is stated in Exhibit A:

1. I, WOII ANTWI SAMUEL KOJO ON 12 SEPTEMBER 2018 HANDED OVER MY BMW X6 2008 MODEL UNREGISTERED CAR TO MR JAMES TAWIAH NKRUMAH ON THE BASIS OF PAYING AN AMOUNT OF ONE HUNDRED AND SEVENTY THOUSAND GHANA CEDIS (GH¢ 170,000.00) IN A MONTH'S TIME.

Since Exhibit A is silent on the purpose, it must be read as a whole to determine the true intentions of the parties. The wording of Exhibit A is clear and states that the Plaintiff was handing over his unregistered BMW X6 2008 model vehicle to the Defendant on the 12th of September, 2008 and that he expected to be paid an amount of One Hundred and Seventy Thousand Ghana Cedis (GH¢ 170,000.00) in a month's time.

It goes on to state that the Defendant was expected to pay the outstanding amount within the one month period. Exhibit A states as follows:

2. HE, MR JAMES TAWIAH NKRUMAH IS TO HANDLE THE CAR WITH CARE. WITHIN THE ONE MONTH PERIOD HE IS EXPECTED TO PAY ALL OUTSTANDING AMOUNT. …

Reading the Exhibit A as a whole, it can be deduced that the Plaintiff handed over his vehicle to the Defendant for the purpose of selling same for a specific amount. It can also be concluded from the above that the Plaintiff was exchanging his vehicle for an amount of One Hundred Seventy Thousand Ghana Cedis (GH¢170,000.00)

and thus suggesting a sale of the said vehicle and this Court holds as such. The intention of the parties in Exhibit A was for the Defendant to pay any outstanding amount from the sale of the Plaintiff's vehicle within a month.

During the cross examination of the Defendant he admitted that he took custody of the car for white man who needed a car to buy but when they tried to the car they realised that there was a fault with the car and so they decided against buying the said vehicle. This is what he had to say on the 27th of May, 2024:

> Q. I suggest to you that you worked with a white man on a project in the Volta Region called Nicholas Smith
> A. It is not true that I have worked with a white man called Nicholas Smith. The fact is someone brought a white man to me that he needed a car to buy. When we tried the car, we realised that there was a fault with the car so we could not buy the car.
> Q. Which car are we referring to in this case?
> A. BMW X6 2008 Model
> Q. Where did you obtain the vehicle from?
> A. I got it from the Plaintiff. We are friends so I informed him that someone had approached me and wanted to buy BMW X6 2008 Model

This admission of Defendant corroborates the story of the Plaintiff that he handed over his vehicle to the Defendant for it to be sold and this court will accept his version of events and the proof of same is dispensed with. See the case of Okudzeto Ablakwa and Another v. Jake Obetsebi Lamptey and Another (supra).

The Defendant also testified that he took custody of the Plaintiff's vehicle in September, 2018 and this date corresponds with the date stated in Exhibit A. This is what he had to say during cross examination on the 27th of May, 2024:

Q. Can you tell this Court in which year you took custody of Plaintiff's vehicle?

A. In September, 2018

This document was signed by both parties and the Plaintiff's witness and had the telephone number of both parties and the terms clearly state that the plaintiff handed his BMW X6 2008 model unregistered car to the defendant on the 12th of September, 2018 and that the defendant would pay the outstanding amount from the sale of the said vehicle in a month's time.

From the above discussion I hereby conclude that on the 12th of September, 2018 Plaintiff and Defendant entered into an agreement for the sale of a BMW X6 2008 model for the value of One Hundred Seventy Thousand Ghana Cedis (GH¢ 170,000.00).

I will now discuss whether or not the Defendant breached the terms of the terms of Exhibit A.

In the case of **Evelyn Nyarkoa Obeng and Victoria Solomon v. Daoud Anum Yemoh (Unreported) in Suit No. GJ/1012/2018 dated 29 July 2019**, the High Court presided over by His Lordship Justice Kweku T. Ackaah-Boafo held as follows:

> "According to G.H. Treitel, the Law of Contract 11th Edition ' a breach of contract is committed when a party without lawful excuse fails to perform what is due from him under the contract or perform defectively or incapacitates himself from performing".

Exhibit A states that if the Defendant fails to comply with the terms of the agreement will attract legal consequences and set a fine of Ten Thousand Ghana Cedis (GH¢ 10,000.00).

Paragraph 3 of Exhibit A states as follows:

3. REFUSAL TO ADHERE OR COMPLY WITH THE ABOVE AGREEMENT IS A SERIOUS BREACH OF CONTRACT AND IT WILL ATTRACT LEGAL CONSEQUENES AND SET FINE OF AN AMOUNT OF TEN THOUSAND GHANA CEDIS (GH¢ 10,000.00).

The Defendant agreed during cross examination that he did not make any payment to the Plaintiff because the car had not been sold on the 2nd of July, 2024 as follows:

> Q. You did not make any payment to the Plaintiff. Did you?
> A. No I did not because the car had not been sold

This inability of Defendant to adhere to the terms of Exhibit A therefore triggered clause 3 of Exhibit A and the culmination of the instant case.

The Defendant testified that when he failed to sell the Plaintiff's vehicle he returned same to him but the Plaintiff told him to keep it and try and sell same. This is what he had to say in his witness statement:

> 6. It was also agreed that if the sale could not materialise and I could not dispose of the vehicle within three months (not one month as the Plaintiff later wrote down), the Plaintiff will take his car back. When the three months expired the Plaintiff insisted that the car should still be with me since there is the likelihood of me getting a buyer rather than him.

7. I drew Plaintiff's attention to the three month agreed upon to look for a buyer, but the Plaintiff said it did not matter since they were friends and more so as the vehicle had to be fixed before selling it could take more time than even the agreed period.

The Defendant was cross examined by Counsel for the Plaintiff on this fact on the 4th of July, 2024. This is what transpired:

Q. At what point did you hand over the vehicle to the Plaintiff after you had taken possession of it in 2018?
A. In December, 2018 I sent the vehicle to the Plaintiff since the first buyer backed out from purchasing the vehicle. In 2019 somewhere May, I sent the vehicle to the Plaintiff and informed I was finding it difficult to get a buyer. In the year 2020 either in February or March, I met the Plaintiff at the Airport or I informed him I still cannot find a buyer to purchase the vehicle. In March 2020, the Plaintiff came for the car from the fitting shop.

Unfortunately this new agreement was an oral agreement between the Plaintiff and the Defendant and the Defendant had the burden to prove same. All he did was to enter the witness box and repeat his assertion without leading cogent evidence that this new agreement was entered into and thus he failed to meet the burden on him.

In the case of **Klah v. Phoenix Insurance Company Limited [2012] SCGLR 1139**, the Supreme Court held as follows:

"Where a party makes an averment capable of proof in some positive way in some positive way e.g. by producing documents, description of things, reference to other facts, instances and his averment is denied, he does not

> prove it by merely going into the witness box and repeating that averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which the Court can be satisfied that what he avers is true."

See the case of Majolagbe v. Larbi [1959] GLR 190.

The question that must be answered is what stopped the Defendant from returning the vehicle to the Plaintiff for two years when he failed to get a buyer as he claimed. There is evidence on record that the vehicle was not returned and the Plaintiff had to take steps to retrieve the vehicle. This is what the Plaintiff had to say in his witness statement which was adopted as his evidence in chief:

> 7. I handed over the vehicle to Defendant on 12 September 2018 with the agreement that the money will be paid in a month's time.
>
> 8. Defendant failed to honour his promise and bolted with my vehicle without trace.
>
> 9. All attempts to locate Defendant and my vehicle proved futile
> though occasionally he picked my calls or replied to my WhatsApp and SMS messages and promised paying his indebtedness to me.
>
> 10. Defendant not only reneged on all commitments to pay for the vehicle but also refused to return my vehicle, so u reported the matter to the police and other security agencies in the country for assistance to trace and recover my vehicle for me.

> 13. Upon his arrest, it was realized that Defendant had abandoned my BMW X6 vehicle in a state of disrepair at a location at Oyarifa. I got the vehicle towed from Oyarifa to the police CID headquarters where the SIU invited a BMW expert to examine the vehicle.

The Defendant had the following to say about the steps he took to return the vehicle in his witness statement. This is what he had to say;

> 8. … At a point when I called the Plaintiff to inform him that I was bringing the car to him since I was not getting a buyer the Plaintiff believed so much that I could get a buyer and so he got offended and insisted that I must get a buyer at all cost and even threatened me that when I bring the car he would lock me up in guardroom for not being able to sell the car.

There is evidence on record that the Defendant handed the vehicle to a mechanic by name Morris. This is what he had to say on the 4th of July, 2024 during cross examination:

> Q. The only time Plaintiff took possession of the vehicle was when he recovered it from the fitting shop.
> A. He went for the vehicle from Morris's house
> Q. Who gave the vehicle to Morris?
> A. I did
> Q. What work does Morris do?
> A. He is a mechanic

He goes on to testify that the Plaintiff came for the vehicle and drove same to the National Security secretariat, in good condition. Despite giving this testimony, the

Defendant failed to call witnesses to corroborate his testimony as to why he kept the Plaintiff's vehicle for two years without returning it to him.

From the above it is apparent from the evidence adduced on record that the Defendant breached the terms of Exhibit A when he failed to sell the Plaintiff's vehicle within the period it was agreed to and thereafter kept the vehicle for two years and then proceeded to hand same over to one Morris.

The next issue to discuss is whether or not the Plaintiff's vehicle had deteriorated when he retrieved same.

The Plaintiff also claims that after he went for the vehicle from Morris at Oyarifa, it had deteriorated and he tendered into evidence Exhibits F series which are pictures of the vehicle in question before it was handed to the Plaintiff and after it was retrieved. On this issue he had the following to say in his witness statement which was adopted as his examination in chief on the 25th of October, 2025 as follows:

> 13. Upon his arrest, it was realized that Defendant had abandoned my BMW X6 vehicle in a state of disrepair at a location at Oyarifa. I got the vehicle towed from Oyarifa to the police CID headquarters where the SIU invited a BMW expert to examine the vehicle. The damage to the vehicle was as follow:
>
> a. Comfort Access was damaged.
> b. Moding Light was damaged.
> c. Rim LED light was removed.
> d. Windscreen was cracked.
> e. Side mirrors were damaged.
> f. Worn out body paint, scratches and dents on vehicle body and roof.
> g. Interior lining and seats were damaged.

16. That further examination of my vehicle revealed that it had been extensively damaged. It was found that the fender lights were removed, the battery destroyed, the interior of the vehicle were damaged, tyres were worn out and the engine completely damaged. Attached and marked as **EXHIBIT WO 6 series** are picture showing the state of the vehicle before and after Defendant took charge of it.

Although the Plaintiff was cross examined by Counsel for the Defendant on the 14th of February, 2024 he maintained his testimony. This is what transpired:

> Q. Take a look at Exhibit F1 series, you have a number of pictures of about 20 with the description before and after. Are you referring to the same
>
> A. Yes
>
> Q. The before and after vehicles are 2 different vehicles, I am putting that to you.
>
> A. It is the same vehicle
>
> Q. Look at Exhibit 1 and the front Grill, you will agree with me that they are different.
>
> A. No they are not different.
>
> Q. The picture of the after vehicle is broader than the before vehicle
>
> A. It is the camera, the before you can see the ends of the road and the after picture you cannot see the end of the road.
>
> Q. If you look at the pictures of the before vehicles they are all washed and the after vehicle pictures are dirty and unwashed.
>
> A. The before pictures are of the car when it was with me and the after are of when it was with him are retrieved.
>
> Q. I put it to you that before pictures are not pictures of the vehicle you handed to the Defendant to sell for you
>
> A. That is not true. That is the exact vehicle

This testimony was corroborated in part by the Defendant during cross examination on the 4th of July, 2024. This is what he had to say:

> Q. The only time Plaintiff took possession of the vehicle was when he recovered it from the fitting shop
> A. He went for the vehicle from Morris's house
> Q. That his shop is located at Oyarifa from where his mechanic shop is located
> A. The car was recovered from Oyarifa but that is not where his mechanic shop is located

This admission therefore dispenses the need to prove that the vehicle was recovered from Morris. See the case of Samuel Okudzeto Ablakwa and Another vrs Jake Obetsebi Lamptey and Another (supra).

What must be determined is the state of the vehicle when it was finally recovered. The Defendant denies that the vehicle was faulty and that it was the Plaintiff who drove the vehicle to Blue Gate. Thus there is an admission that from Morris's place the vehicle was sent to Blue Gate. This is what the Defendant had to say during cross examination on the 4th of July, 2024:

> Q. So Plaintiff recovered the vehicle from a mechanic shop belonging to your friend Morris the mechanic in a faulty state.
> A. That is not correct. The Plaintiff drove the vehicle to Blue gate.

The Plaintiff also states that the vehicle had to be towed to Blue Gate but he failed to lead cogent evidence that he towed his vehicle to Blue Gate. He could have called

the driver of the towing vehicle which allegedly towed the vehicle to blue gate or someone who witnesses this.

Although the Plaintiff tendered into evidence Exhibit F19, which are pictures of the vehicle being placed on a towing vehicle, unfortunately there is no date on this picture so as to assist the court to conclude that that was the day it was sent to Blue Gate from Oyarifa.

That being said what saved the Plaintiff's case is that he tendered into evidence Exhibit E which the police report detailing the damage is caused to the Plaintiff's vehicle when it was examined.
I will reproduce the relevant portion of Exhibit E as follows:

> "… The vehicle was inspected and it was observed that, the fender lights were removed, the battery was destroyed, the interior was damaged and the tyres were worn out".

It must also be noted that the Defendant's case is that he had nothing to do with the vehicle after it was recovered from Morris and that the Plaintiff used the vehicle for a while. This is what he had to say during his cross examination on the 4th of July, 2024:

> Q. So within the period of 2008 until 2021 when you were arrested, you had the vehicle in your possession "looking for a buyer for the Plaintiff".
> A. That is not true. The car was not with me
> Q. Where was the vehicle within that period?
> A. the car was with Plaintiff for over a year when we went to the Police headquarters.

He also states that the vehicle was in a good state when it was recovered but there is evidence on record that he was not present when the vehicle was recovered but rather he gave the Plaintiff the direction to Morris's house on the phone. The Plaintiff however denied this assertion and as such the burden was on the Defendant to prove this fact.

This is what the Plaintiff had to say on the 25th of October, 2023 during his cross examination:

> Q. When you went to pick the vehicle from the Defendant he was not present
> A. Yes

With this admission by the Plaintiff it is clear that the Defendant had the burden to prove that the vehicle was driven by the Plaintiff and he could do so by calling Morris who was a material witness but he failed to do so. See the case of Gligah and Atiso v. The Republic [2010] SCGLR 870.

Unfortunately all the Defendant did was to enter the witness box and repeat this assertion which does not meet the burden on him. See the case of Klah v. Phoenix Insurance Company Limited (supra).

I hereby conclude that the Plaintiff's BMW X6, 2008 model had deteriorated when it was recovered from Morris and sent to Blue Gate.

Having come to this conclusion, the Court must now decide whether or not the Defendant must be ordered to pay an amount of Thirty Five Thousand One Hundred and Thirty Four Ghana Cedis (GH¢ 35,134.00) which is the cost of repair of the Plaintiff's vehicle. The Plaintiff in support of his case tendered into evidence

Exhibit D series which is a copy of the invoice for the parts required to fix the Plaintiff's vehicle.

He was cross examined on Exhibit D by Counsel for Defendant and this is what ensued on the 14th of February, 2024:

> Q. Look at Exhibit D series which are some invoices that you have attached to your witness statement and the handwritings are of the same person.
> A. That is not correct
> Q. There are no indications that you actually paid for the invoices.
> A. We do not pay for invoices
> Q. So in effect they are not receipts
> A. They are not receipts. The invoice are from the period after the car got damaged

The Plaintiff from the above answers clearly shows that Exhibit D are not receipts for how much he spent on fixing his vehicle but rather invoices of the estimated cost of repairs of his vehicle. Exhibit D series has the model of the Plaintiff's vehicle written on it and various sums of money indicating the price of the parts required to fix the vehicle. It is also clear that Counsel for Defendant failed to discredit Plaintiff's testimony during cross examination.

This examination of the Plaintiff's vehicle would have been conducted when it was in the custody of the police between the years 2020 to 2023. A careful perusal of Exhibit D series clearly has the dates 2021 which falls within the time frame when the vehicle was with the police and this corroborates the testimony of the Plaintiff. Therefore the period of 2022 till 2023 were not factored into the estimation made in Exhibit D series and thus covers the damage caused when the vehicle was in the custody of the Defendant.

From the discussion above I hereby conclude that the Plaintiff has led cogent evidence that the cost of repairing his 2008 BMW X6 is Thirty Five Thousand One Hundred and Thirty Four Thousand Ghana Cedis (GH¢35,134.00).

It is also clear from the evidence above that the conduct of Defendant of keeping the Plaintiff's vehicle from 2018 until 2020 when it was retrieved from Morris led to losses to Plaintiff and as a result he must be mitigated by placing Plaintiff as far back as possible to the state he was before the agreement was breached. In the case of **Jidem Security Limited v. Bulk Oil Storage and Transportation Civil CM/0134/15 dated 23rd April 2018** the High Court held as follows;

> "The philosophy that animates damages in contract is to place the innocent party as far as money can do in the same position he would have been in had the breach not occurred. The test that has applied over the years have flowed from the classic decision of Alderson B in HADLEY BEXANDALE (1854) 9 EX 341 and can be seen in terms of remoteness of damages and mitigation of losses now seen as reasonably foreseeability".

Having already concluded that the Defendant breached the terms of Exhibit A and he thereafter kept the vehicle for two years, he is thus liable to pay for the cost of the repairs of any damage caused to the vehicle when it was in his possession. Accordingly the Defendant is ordered to pay an amount of Thirty Five Thousand One Hundred and Thirty Four Thousand Ghana Cedis (GH¢35,134.00) being the cost repairs of the damage caused to the Plaintiff's vehicle.

The next issue to be discussed is whether or not the Defendant should be ordered to pay for the loss of use of his vehicle at a daily rate of Five Hundred Ghana Cedis (GH¢500.00) from 12 September, 2018 till date of final payment.

The Plaintiff testified during his examination in chief as follows;

> 18. As a result of the conduct of the Defendant, I was denied access and use of my vehicle for hiring resulting in loss of revenue for me.
> 19. At the time Defendant took my vehicle, a vehicle of that nature was being hired for five hundred Ghana Cedis (GH¢ 500.00) without the services of a driver and fuel. Attached and marked as **EXHIBIT WO 8** are pro former invoices from some companies to that effect.

In support of his case he attached Exhibit H series which is a copy of the pro former invoice from car hiring companies who had similar vehicles in their stock and detailing how much it cost to hire such a vehicle for a day. I have carefully perused the testimony of Plaintiff and it is clear that the Plaintiff failed to tender into evidence to prove that he hired a similar vehicle for the period when he was denied access to his vehicle due to the Defendant breaching Exhibit A. All he did was to enter the witness box and repeat his assertions and which does not meet the burden placed on him. See the case of Klah v. Phoenix Insurance Company Limited (supra).

The Plaintiff therefore fails on relief b and c of his claim.

I will now discuss the issue of whether or not the Plaintiff should be ordered to pay an amount of Six Thousand Seven hundred Ghana Cedis (GH¢ 6,700.00) which the Defendant spent on fixing the Plaintiff's vehicle.

The Defendant's case is that after the Plaintiff handed his vehicle to him he tested same by driving it and upon doing so he detected a defect which required fixing. He further states that upon informing the Plaintiff of the defect the Plaintiff asked him to try and raise some money to fix it and then promised that he would reimburse

him from the sale. He goes on to state that relying on this promise he spent an amount of Six Thousand Seven Hundred Ghana Cedis (GH¢6,700.00) to fix the said vehicle.

The Defendant had the following to say in his witness statement which was adopted as his evidence in chief:

> 5. Although I got a buyer for the vehicle, when I drove the Vehicle I detected that it had a defect which required to be fixed and the Plaintiff asked me to try and raise some money to fix it and that he would reimburse me from the sale and I spent an amount of GH¢6,700.00 to fix the car.

From the above it is clear that this agreement was not included in Exhibit A but rather a new oral agreement between the Plaintiff and the Defendant. The Defendant therefore bears the burden to prove this assertion.

I will reproduce the relevant portion of Exhibit A as follows:

> 2. MR JAMES TAWIAH NKRUMAH IS TO HANDLE THE CAR WITH CARE. WITHIN THE ONE MONTH PERIOD HE IS EXPECTED TO PAY ALL OUTSTANDING AMOUNT. HOWEVER, HE MUST SERVICE THE CAR PERIODICALLY BECAUSE THE CAR IS BEING HANDED TO HIM WITHOUT ANY SERVICE LIGHT ON THE DASH BOARD CLUSTER.

This document clearly states that the Plaintiff's vehicle was handed to the Defendant without any service light on the dash board cluster which raises a presumption that the vehicle had no defects when it was handed to the Defendant. It has already been concluded that the Defendant signed this document and therefore is bound by terms of same. Unfortunately a careful perusal of the record clearly indicates that the Defendant failed to meet the burden on him, as all he did was to enter the witness

box and repeat his assertions. He failed to lead any corroborative evidence in support of his case. He failed to call the mechanic who purportedly fixed the defect in the Plaintiff's vehicle, neither did he tender into evidence documentary evidence to corroborate his testimony.

See the case of Gligah and Atiso v. The Republic (supra).

Accordingly since Defendant's reliefs i and ii goes together I hereby hold that the Defendant fails on both reliefs i and ii.

The next issue to be determined is whether or not the Plaintiff took an amount of Ten Thousand Ghana Cedis (GH¢10,000.00) from the Defendant's Hyundai Elantra car. The Defendant's case as found in his witness statement is as follows:

> 13. Meantime when the Plaintiff and his team went to my house and the Plaintiff took my keys of my Hyundai Elantra Vehicle and drove the car to the National Security Secretariat. An amount of GH¢10,000 which was in the car was taken by the Plaintiff who said he handed same to DSP AZUGU.

It must also be noted that although the Defendant maintains that the amount in his vehicle was Ten Thousand Ghana Cedis (GH¢10,000), all he did was to mount the witness box and repeat his assertions against the Plaintiff.

He failed to call any corroborative witness to testify on his behalf on this issue, neither did he tender into evidence any documentary evidence and thus failed to meet the burden on him. See the cases of Gligah and Atiso v. The Republic and Majolagbe v. Larbi (supra).

The Plaintiff in his testimony stated that the amount in the Defendant's vehicle was One Thousand Ghana Cedis (GH¢1,000) and not Ten Thousand Ghana Cedis

(GH¢10,000). This is what ensued during cross examination on the 4th of December, 2023:

> Q. In the car was 10,000 and not GH¢1,000
>
> A. The amount in the car was GH¢1,000
>
> Q. The 10,000 has never been released to the Defendant
>
> A. That is not true, I do not know anything about any GH¢10,000

The Plaintiff therefore admitted that an amount of One Thousand Ghana Cedis (GH¢1,000) was in the Defendant's vehicle and therefore there is no need to prove same. See the case of In re Asere Stool; Nikoi Olai Amontai IV (Substituted by) Tafo Amon II v. Akotia Owirsika III (Substituted by) Laryea Ayiku III (supra).

This court therefore accepts the version of Plaintiff's assertion and concludes that the amount found in the Defendant's Hyundai Elantra vehicle was One Thousand Ghana Cedis (GH¢1,000) and not Ten Thousand Ghana Cedis (GH¢10,000).

Plaintiff also testified that he handed this One Thousand Ghana Cedis (GH¢1,000) to the Defendant in the company of another military officer and a police officer. This is what he had to say his cross examination on the 4th of December, 2023:

> Q. You didn't drive it to the National Security Secretariat
>
> A. I did not drive it.
>
> Q. But you gave the keys to the police
>
> A. When we went to the National Security, we went with the Defendant and DSP Azuri told him they wanted to go for his car and park same at the National Security Secretariat, they then asked him if he has any property in the car and he said there was GH¢1,000.00 in a brown envelope where the spare tyre was. So I went to his house in the company of another military

officer and a police officer and we went for the car and handed the GH¢1,000 to him.

Although the Plaintiff stated during his cross examination that there were two material witnesses who were present when he handed the GH¢1,000 to the Defendant he failed to call these witnesses to corroborate his testimony and as such the court must hold that the Plaintiff failed to hand over the One Thousand Ghana Cedis (GH¢1,000) he admitted was in the Defendant's vehicle.

See the case of Gligah and Atiso v. The Republic (supra).

The Plaintiff must therefore ordered to the One Thousand Ghana Cedis (GH¢1,000) which he admitted he found in the Defendant's Hyundai Elantra vehicle.

The next issue to be determined is whether or not the Defendant's arrest, torture and detention were unlawful.

The Defendant claims that his arrest and detention was unlawful as same was done by National Security Personnel and in support of his case he called Patricia Asante, his wife, to testify and corroborate to the cause of events on the day he was arrested.

This is what Patricia Asante had to say on the 26th of August, 2024 during her Evidence in chief:

4. On or about the 13th day of March, 2020, in the early hours of that day, while preparing to go to work I heard a knock on our residential Flat door and one of my children went to open to find out who it was and there was DSP Azugu who banged into the room and straight to our bedroom with one other police officer and ordered the Defendant who was coming out if the bathroom with towel wrapped on his waist to come out. The Plaintiff who also entered the flat stood in the living room.

5. The Defendant wanted to dress up or wear some dress but Azugu started pulling him out in that naked state. DSP Azugu pulled his gun and threatened to shoot the Defendant and resorted that he would treat him like a criminal. The Plaintiff who came with Azugu was standing by.
6. Defendant was eventually put into the car they brought only in trousers while holding his shirt as they handcuffed him. Our children who were getting ready for school were so frightened and they started weeping.

11. On another occasion I was in a car with the Defendant together with our little child on the N1 Highway in Accra, when the Defendant who was in charge of the car was signalled by a Police vehicle which had the inscription SWAT on it to park and the Defendant pulled to the side and stopped.

12. Suddenly Police officers in the said SWAT vehicle ordered me and my baby to get down and that Azugu has ordered them to bring the Defendant. We pleaded with them but they pulled me and my baby out if the car and they drove the car with the Defendant away leaving me and the baby stranded with our items taken away in the car.

The Plaintiff denied that the Defendant's arrest and detention was unlawful. From the evidence on record the Plaintiff was the one who lodged a complaint against the Defendant and that this led to his arrest on two occasions at his house and on the N1 highway all in the presence of his family. This is what the Plaintiff had to say during his evidence in chief:

10. Defendant not only reneged on all commitments to pay for the vehicle but also refused to return my vehicle, so I reported the matter to the police and other security agencies in the country for assistance to trace and recover my vehicle for me.

In support of his case he tendered into evidence Exhibit E and I will reproduce the relevant portion of Exhibit E as follows:

> **2. Brief Facts:** On 1 October 2020, a petition was received from WO1 Antwi Kojo Samuel through the Director-General/CID for investigation. The petitioner complained that, on 12 September 2018, suspect James Tawiah Nkrumah collected his BMW X6 2008 model from him under the pretext of buying same at a cost of GH¢ 170,000.00 but he failed and efforts to locate him with the vehicle proved futile.
>
> 3. … could not be traced with the vehicle until his arrest on 17 March 2020 by the National Security.

Is it trite law that a police officer may arrest any person he suspects upon reasonable ground of having committed an offence. See section 10 of Criminal and Other Offences (Procedure) Act, 1960 Act 30.

Exhibit E, the police report states that on the 1st of October, 2020, a petition against the Defendant was received from WO1 Antwi Kojo Samuel through the Director-General/CID for investigation and that this led to his arrest. Therefore there is evidence on record that the Plaintiff lodged a complaint against the Defendant and based on this police officers arrested the Defendant.

Section 3 of the Criminal and Other Offences (Procedure) Act, 1960 (Act 30) as follows:

> In making an arrest a police officer or any other person making the arrest, shall actually touch or confine the body of the person to be arrested, unless there is a submission to the custody verbally or by conduct

In order for the Defendant to succeed he must prove that he was not arrested by a police officer. A careful perusal of the record of proceedings it was always police

officers who effected the arrest of the Defendant in his house on the 13th of March, 2020 and on the N1 highway in October, 2020. Thus the requirement of the law in section 10 of Act 30 has been complied with on both occasions.

Although the 1st Defendant admitted that the Defendant was arrested by DSP Azugu she then denied that the Defendant was arrested by the Ghana Police Service. This fact is what the 1st Defendant witness said during cross examination on the 26th of August, 2024:

> Q. Are you also aware that in August, 2018 your husband entered into an agreement with the Plaintiff for the purchase of a BMW X6 2008 model unregistered?
> A. No I was not aware until my husband was arrested by DSP Azugu.
>
> Q. Do you know that before that it is normal police practice to effect arrest of suspect upon receipt of complaint of alleged criminal conduct?
> A. Yes but my husband was not arrested by Ghana police service.

From the testimony of the 1st Defendant witness, the arrest of the Defendant was conducted by a police officer by the name DSP Azugu and that he followed the law in accordance with section 3 of Act 30. There is no evidence on record that this arresting officer was not a police officer. I hereby conclude that the Defendant's arrest on the 13th of March, 2020 was lawful.

The second time the Defendant was arrested was on the N1 highway in October, 2020. This is what the Defendant had to say during his evidence in chief:

> 14. Then again in October, 2020, the Plaintiff called me and I informed him that I was in traffic on the N1 highway and within a short moment the

Plaintiff stopped me with his team of security operatives, pulled out my wife and children from the Car, and drove me with me trapped inside by them to the National Security Secretariat, leaving my Wife and Children stranded.

The 1st Defendant also corroborated this testimony and had the following to say during her evidence in chief:

11. On another occasion I was in a car with the Defendant together with our little child on the N1 Highway in Accra, when the Defendant who was in charge of the car was signalled by a Police vehicle which had the inscription SWAT on it to park and the Defendant pulled to the side and stopped.

12. Suddenly Police officers in the said SWAT vehicle ordered me and my baby to get down and that Azugu had ordered them to bring the Defendant. We pleaded with them but they pulled me and my baby out of the car and they drove the car with the Defendant leaving me and the baby stranded with our items taken away in the car.

This testimony once again proves that the Defendant was arrested for the second time by police officers in October, 2020 and this falls within the requirement of section 3 of Act 30 which makes the arrest lawful.

The Defendant went on to state that after he was arrested in his house by DSP Azugu on the 13th of March, 2020 he was sent to the National Security Secretariat and then to the Ministries Police Station. This testimony indicates that the Defendant was detained at the National Security Secretariat and the Ministries police station after he was arrested.

He also states that during his second arrest in October, 2020 he was sent first sent to the National Security Secretariat and then to the Osu Police station and was detained until the following day.

There is nothing on record which states that the Defendant being sent to these places stated above is wrong in law and the court holds as such. I hereby conclude that the detention of the Defendant on the 13th of March, 2020 and October, 2020 was not unlawful.

The Defendant also claims he was unlawfully tortured and detained after he was arrested.

This is what he had to say during his evidence in chief on the 25th of October, 2023:

> 12. The Plaintiff and his team of security men took me to the National Security Secretariat otherwise refer to as the "Blue Gate " where I was manhandled and later sent to the Ministries Police Station and they left me there. Later, the Crime Officer at the station after having noticed that I was beaten before I was brought and could not get those who brought me to take care and responsibility released me.
>
> 15. From the National Security Secretariat, I was sent to the Osu Police station where I was kept in Police cells till the following day. While at the Osu Police station I was advised to get someone to report the conducts of the Plaintiff and DSP Azugu to the Police Intelligence and Professional Service (PIPS) Unit of the Ghana Police Service which was done. After a while DSP Azugu and his men appeared at the Police station and took me back to the National Security Secretariat (Blue gate).

The Defendant tendered into evidence a copy of the police report and same was marked as Exhibit 1. Although this police report is dated the 1st of December, 2022 and precedes both arrests on the 13th of March, 2020 and October 2020, it is silent on whether the Defendant was tortured when he was retained.

The Defendant also testified that he was advised to get someone to report the conduct if the Plaintiff and DSP Azugu to the Police Intelligence and Professional Intelligence Service (PIPS) Unit of the Ghana Police Service. He however failed to tender this investigative report of PIPS in support of his case; he also failed to tender into evidence any documentary evidence of the alleged injuries he suffered when he was tortured.

The 1st Defendant witness testified that when she went to the Ministries Police station was allowed to see the Defendant, he did not look well and there were signs of beatings. It therefore stands to reason that the Defendant would have gone to the hospital since he was released that very day but there is no evidence of this on record. Having failed to tender in corroborative evidence the Defendant failed to meet the burden of proof on him. He therefore fails on reliefs v, vi and vii.

The next issue to discuss is whether the Defendant went through emotional assault and battery, when he was detained.

Assault and battery has been provided for under section 86(1) of the Criminal Offences Act, 1960 (Act 29) as follows:

> A person makes an assault and battery on another person, if without the other person's consent, and with the intention of causing harm, pain, or fear, or annoyance to the other person, or of exciting the other person to anger, that person forcibly touches the other person.

The Defendant testified that when he was sent to the National Security Secretariat he was manhandled and was beaten. He also states that he made a report after his arrest and detention at the Police Intelligence and Professional Service (PIPS) unit. Unfortunately from the record of proceedings the Defendant's testimony did not meet the burden of proof on him. Having concluded that the Defendant failed to lead enough cogent evidence that he was tortured when he was arrested this court concludes that the he failed to prove that he was emotionally assaulted and battered. He therefore fails on reliefs v, vi and vii.

From the evidence on record after the Defendant was arrested he was handed to CID headquarters as Exhibit A.

This admission by the 1st Defendant witness therefore dispenses of this fact.

Section 4(1) of Act 30 also provides as follows:

Search of place entered by person sought to be arrested

> (1) Where a person acting under a warrant of arrest, or a police officer having authority to arrest has reason to believe that the person to be arrested has entered into or is within a place, the person residing in or in charge of the place shall, on demand, allow the person so acting or the police officer free entry to the place and afford reasonable facilities to search the place for the person sought to be arrested.

This section was also complied with as the Defendant was not found outside of his house on the day in question but he was in the house and as such the police officer

had the authority demand to be allowed entry into the house and to be afforded reasonable facilities to search the house for the Defendant.
From the discussion above it is clear that DSP Azugu followed the law in accordance with section 3 and 4(1) of Act 30 and as such the Defendant's arrest was lawful.

Finally the last issue to be determined is whether the Defendant's family went through psychological torture when they witnessed the Defendant's arrest.

Psychological torture is a form of abuse which is characterized by a person knowingly or intentionally exposing another person to a behavior that results in psychological trauma including anxiety, chronic depression, clinical depression or post-traumatic stress disorder amongst other psychological reactions. In order to prove this assertion the Defendant and his witnesses must prove how his family were affected by witnessing his arrest. Unfortunately all the Defendant and his witnesses did was to enter the witness box and repeat his case against the Plaintiff and in my opinion that alone is not enough to meet the burden on him. In order to succeed there must a detailed report of how the Defendant's ordeal affected them.

The Defendant and his witnesses failed to tender into evidence an endorsed medical report from a medical doctor, they also failed to call a medical doctor to testify on how affected his family were by his arrest. There was no evidence on record to prove that the Defendant's family suffered any negative impact in their lives and as a result were entitled to be compensated. It must be noted that just entering into the witness box and repeating their assertions does not meet the burden of proof on them and I hold that the Defendant failed on relief vi.

CONCLUSION

I hereby make the following orders;

a. The Defendant is ordered to pay an amount of Thirty Four One Hundred and Thirty Four Thousand Ghana Cedis (GH¢35,134.00) being the cost of the repairs of the deteriorated BMW X6 2008 model belonging to the Plaintiff.

b. Cost of Two Thousand Ghana Cedis (GH¢ 2,000.00) is awarded in favour of the Plaintiff.

c. The Plaintiff is ordered to pay an amount of A Thousand Ghana Cedis (GH¢1,000.00) being the money which was in his Elantra vehicle which the Plaintiff came for from Defendant's house.

d. The Defendant is ordered to pay interest on the amount of GH¢1,000.00 from March 2020 till final payment.

e. Cost of One Thousand Ghana Cedis is entered in favour of the Defendant.

SGD

H/W ADWOA BENASO ASUMADU-SAKYI

MAGISTRATE